

HOUSE No. 1630

The Commonwealth of Massachusetts

PRESENTED BY:

Mark J. Cusack

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the examination of evidence rooms and evidentiary procedures.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark J. Cusack</i>	<i>5th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 1630

By Representative Cusack of Braintree, a petition (accompanied by bill, House, No. 1630) of Mark J. Cusack relative to the examination of evidence rooms and evidentiary procedures. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1430 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the examination of evidence rooms and evidentiary procedures.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 276 of the General Law, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 104. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Auditing entity”, a person, or an employee or department of the commonwealth, who is
6 experienced and trained in evidence collection, storage and auditing, who is deemed qualified by
7 the secretary to perform audits of a department’s evidence, property, and evidence and property
8 room.

9 “Chief executive officer”, the chief executive officer or person in charge of each
10 department.

11 “Department”, the Massachusetts state police, the Massachusetts Bay Transportation
12 Authority police force, any police department in the commonwealth or any of its political
13 subdivisions; any law enforcement council, as defined in section 4J of chapter 40, created by
14 contract between or among cities and towns, pursuant to section 4A of said chapter 40; the
15 environmental police appointed pursuant to chapter 21A; and any entity employing 1 or more
16 special state police officers appointed pursuant to section 63 of chapter 22C.

17 “District attorney”, the district attorney or designee who has jurisdiction for prosecutions
18 where a department is located.

19 “Evidence”, all items seized as a result of a police investigation that are physical,
20 biological, digital or any other materials that have been collected for their potential evidentiary
21 value during the investigation of a crime.

22 “Evidence and property custodian”, a person appointed by the chief executive officer or
23 designee for the custody and operations of the department’s evidence and property room.

24 “Evidence and property room”, any area, including but not limited to, any room, vault,
25 locker, or other repository, located within the legal control and jurisdiction of a department that
26 contains any evidence or any property.

27 “Full audit”, a full review of all items of evidence and property from the particular
28 evidence and property room log book, whether in electronic format or hard copy, to ensure that
29 all evidence or property is located in the appropriate storage location in the particular evidence

and property room of each department. If evidence or property is stored off-site, the individual conducting the full audit shall contact the particular off-site location and ensure, in writing, that any item of evidence or property is at that particular location.

“Inspection”, a review of the evidence and property room and evidence and property handling procedures including, but not limited to: (1) ensuring department adherence to all security controls and evidence handling procedures; (2) verifying that the limited access control system to the evidence and property room functions properly; (3) ensuring the existence and accuracy of a list of department personnel authorized to access the evidence and property room or handle evidence or property; (4) ensuring general cleanliness of the evidence and property room; (5) ensuring manageable inventory levels within the evidence and property room; (6) ensuring evidence and property custodians have acceptable levels of aptitude and training; (7) inspecting all internal evidence and property room cameras, when applicable; and (8) ensuring the evidence and property room logs are operational and current.

“Municipal executive officer”, the manager in a city or town with a manager form of government; in other cities, the mayor; and in other towns, the board of selectmen.

“Property”, all items, other than evidence, in the custody of a department that are being stored because they were: (i) lost; (ii) abandoned; (iii) taken from a person under arrest by an employee of the department in their normal course of employment; or (iv) seized by the department for their connection to a potential crime.

“Purge”, the disposal, destruction or release of evidence or property at a singular time by a department.

"Random-sampling audit", a review and analysis of randomly selected items of evidence or property from the particular evidence and property room log book, whether in electronic format or hard copy, to ensure that the selected evidence or property is located in the appropriate storage location in the particular evidence and property room of each department. If evidence or property is stored off-site, the individual conducting the random-sampling audit shall contact the particular off-site location and ensure, in writing, that any randomly selected item of evidence or property is at that particular location. A random-sampling audit shall review the lesser of 10 percent of the department's total number of items of evidence or property or 50 items of evidence or property, provided, however, that any department with fewer than 100 items of evidence or property shall review at least 10 items and any department with fewer than 10 items of evidence or property shall review all items.

"Secretary", secretary of the executive office of public safety and security.

(b) A random-sampling audit shall be conducted no less than annually at the direction of the chief executive officer.

The random-sampling audit shall be conducted by a department employee, provided that, the employee shall:

(1) not be the evidence and property custodian;

(2) not have specific oversight or responsibilities for the evidence or property being audited or the evidence and property room in which the items are stored; and

(3) not have conducted the required semi-annual inspections in paragraph (c).

71 If a department has an internal affairs division, a member of the internal affairs division
72 shall perform the random-sampling audit.

73 A written report of the random-sampling audit shall be submitted to the chief executive
74 officer and the municipal executive officer within 30 days of completion.

75 (c) A semi-annual inspection of the evidence and property room shall be conducted by
76 the designated supervisor or the unit commander of the evidence and property room.

77 A written report of an inspection shall be submitted to the chief executive officer and the
78 municipal executive officer within 30 days of completion.

79 (d) All written reports required by subsections (b) and (c) of this section shall be
80 submitted to the secretary not later than January 30 of each year.

81 A department which fails to submit all reports to the secretary on or before January 30 of
82 each year, shall be issued a written warning by the secretary, provided, however that the
83 department shall be allowed an additional 60 days to submit the reports.

84 After 60 days, if the department fails to file the reports or refuses to comply, the
85 department shall undergo a full audit of all the evidence and property stored and in the
86 possession of the department as well as all evidence and property rooms under the legal control
87 and jurisdiction of the department. The full audit shall be completed by a neutral auditing entity
88 not affiliated with the department chosen by the chief executive officer from a list of qualified
89 auditing entities provided by the secretary. The cost of the full audit shall be borne by the
90 department. The chief executive officer and department shall have 30 days from the secretary's
91 notice to select an auditing entity from the list provided.

92 A written report of the full audit shall be submitted to the secretary, the chief executive
93 officer and the municipal executive officer within 30 days of completion.

94 (e) Once every 5 years a full audit of the evidence and property held by a department
95 shall be completed by an employee of the department at the direction of the chief executive
96 officer; provided, however the employee shall:

97 (1) not be the evidence and property custodian; and

98 (2) not have specific oversight or responsibilities for the evidence or property being
99 audited or the evidence and property room in which these items are being stored.

100 A written report of the full audit shall be submitted to the secretary, the chief executive
101 officer and the municipal executive officer within 30 days of completion.

102 If a department fails to conduct the required full audit or submit the full audit report in
103 accordance with this subsection, the department shall undergo a full audit of all the evidence and
104 property stored and in the possession of the department as well as all evidence and property
105 rooms under the legal control and jurisdiction of the department. The full audit shall be
106 completed by a neutral auditing entity not affiliated with the department chosen by the chief
107 executive officer from a list of qualified auditing entities provided by the secretary. The cost of
108 the full audit shall be borne by the department. The chief executive officer and department shall
109 have 30 days from the secretary's notice to select an auditing entity from the list provided.

110 A written report of the full audit shall be submitted to the secretary, the chief executive
111 officer and the municipal executive officer within 30 days of completion.

112 Upon the transfer, resignation or replacement of the chief executive officer, the chief
113 executive officer currently in charge shall order a full audit of the evidence and property held by
114 a department. This full audit shall reset the 5 year timeline of the mandatory full audit and the 5
115 year timeline shall begin after the completion of the full audit conducted pursuant to this
116 paragraph.

117 (f) All moneys seized by a department as evidence or within the course of an
118 investigation, shall be deposited into an interest bearing account held by the department, except
119 if the moneys physically hold evidentiary value as determined by the department or the district
120 attorney. The moneys shall be kept in the account until otherwise instructed by the court. All
121 moneys deposited shall be recorded, including but not limited to, the time, date, account number,
122 denomination of the moneys, person depositing the moneys, institution where the account is
123 held, case number associated with the moneys and origin of the moneys. A written report of all
124 moneys held by the department shall be submitted annually to the secretary, the chief executive
125 officer, the municipal executive officer and the district attorney on or before January 30 of each
126 year.

127 (g) (1) Any evidence or property that is disposed of, returned, auctioned or no longer in
128 custody of the department shall be recorded. The records shall be made available to any
129 governmental entity that needs to view the records for legal, official or other public safety or
130 health reasons.

131 A department which completes a purge of the evidence or property under the
132 department's control shall keep records, including, but not limited to: time, date, type of
133 evidence, method of disposal, case number, description, name of employee and reason for

disposal. Upon completion of a purge, all records shall be delivered to the secretary, the chief executive officer, the municipal executive officer and the district attorney.

(2) A department may dispose of items held as evidence by destruction, return to owner, sale at auction or other lawful disposition pursuant to a court order or after certifying to the district attorney that the disposition is in compliance with section 47A of chapter 94C, section 3 of chapter 276, or chapter 278A.

Records of the disposal of controlled substances pursuant to section 47A of chapter 94C shall be kept by the department. All records shall be submitted annually to the chief executive officer, the secretary, the municipal executive office and the district attorney on or before January 30.

SECTION 2. The department of environmental protection shall conduct a study and investigation of the licensing of incinerators in the commonwealth. The study shall investigate at a minimum: (i) the possibility of mandating the disposal of controlled substances as criteria to obtaining a license, (ii) methods to improve the disposal of controlled substances through safe and legal means within the commonwealth to prevent the theft and over stock of controlled substances, and (iii) potential mandates for departments directed towards frequency and usage of incinerators for purposes of the disposal of controlled substances. The department shall submit a report of its findings to the joint committee on environment and natural resources, the joint committee on consumer protection and professional licensure, the joint committee on the judiciary, and the joint committee on public safety and homeland security on or before July 1, 2027.

155 SECTION 3. A department within the commonwealth, as defined by subsection (a) of
156 section 104 of chapter 276, shall complete a full audit pursuant to subsection (e) of section 104
157 of chapter 276 of the General Laws within 1 year of the effective date of this act.